

Court No. - 3

Case :- WRIT - C No. - 30596 of 2023

Petitioner :- Karan Singh

Respondent :- State Of U.P. And 3 Others

Counsel for Petitioner :- Ravikant Shukla, Manoj Kumar
Srivastava

Counsel for Respondent :- CSC, Manu Ghildyal

Hon'ble Siddhartha Varma, J.

Hon'ble Manoj Bajaj, J.

The sole ground taken by the petitioner is that recovery was being done from a dead person. It is, however, not denied that the petitioner was liable for the liabilities of his father.

Under such circumstances, learned counsel for the Electricity Department may take instructions.

Put up this case as a fresh case on 16.10.2023.

This order was passed in the presence of Sri Manu Ghildyal, learned counsel for the Opposite Party.

Order Date :- 4.10.2023

vkj

Court No. - 3

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Respondent :- State Of U.P. And 3 Others

Counsel for Petitioner :- Ravikant Shukla, Manoj Kumar
Srivastava

Counsel for Respondent :- CSC, Manu Ghildyal

Hon'ble Siddhartha Varma, J.

Hon'ble Manoj Bajaj, J.

Learned counsel for Electricity Department may take proper instructions as per the order dated 4.10.2023.

Put up this case as fresh on 23.11.2023.

Till the next date of listing, no coercive action shall be taken against the petitioner.

Order Date :- 2.11.2023

P.S. Parihar

Court No. - 3

Case :- WRIT - C No. - 30596 of 2023

Petitioner :- Karan Singh

Respondent :- State Of U.P. And 3 Others

Counsel for Petitioner :- Ravikant Shukla, Manoj Kumar
Srivastava

Counsel for Respondent :- CSC, Manu Ghildyal

Hon'ble Siddhartha Varma, J.

Hon'ble Shekhar B. Saraf, J.

Learned counsel for the petitioner prays for time to amend the writ petition.

Put up this case on **12.12.2023 as fresh.**

Interim order, granted earlier, shall continue till the next date of listing.

Order Date :- 23.11.2023

M.S. Ansari

(Shekhar B. Saraf, J.) (Siddhartha Varma, J.)

Court No. - 3

Case :- WRIT - C No. - 30596 of 2023

Petitioner :- Karan Singh

Respondent :- State Of U.P. And 3 Others

Counsel for Petitioner :- Ravikant Shukla, Manoj Kumar
Srivastava

Counsel for Respondent :- CSC, Manu Ghildyal

Hon'ble Siddhartha Varma, J.

Hon'ble Shekhar B. Saraf, J.

On the request of learned counsel for the petitioner, list this case as fresh on 8.1.2024.

Interim order, if any, to continue till the next date of listing.

Order Date :- 12.12.2023

Rakesh

(Shekhar B. Saraf, J.) (Siddhartha Varma, J.)

Court No. - 21

Case :- WRIT - C No. - 30596 of 2023

Petitioner :- Karan Singh

Respondent :- State Of U.P. And 3 Others

Counsel for Petitioner :- Ravikant Shukla, Manoj Kumar Srivastava

Counsel for Respondent :- CSC, Manu Ghildyal

Hon'ble Manoj Kumar Gupta, Acting Chief Justice

Hon'ble Kshitij Shailendra, J.

1. None present for the petitioner. Sri Manu Ghildyal is present for the respondents no.2 and 3.

2. List as fresh on 18.01.2024.

Order Date :- 9.1.2024

AKShukla/-

(Kshitij Shailendra, J.) (Manoj Kumar Gupta, A.C.J.)

Court No. - 21

Case :- WRIT - C No. - 30596 of 2023

Petitioner :- Karan Singh

Respondent :- State Of U.P. And 3 Others

Counsel for Petitioner :- Ravikant Shukla, Manoj Kumar Srivastava

Counsel for Respondent :- CSC, Manu Ghildyal

Hon'ble Manoj Kumar Gupta, Acting Chief Justice

Hon'ble Kshitij Shailendra, J.

Civil Misc. Amendment Application No. 2/2023

1. Heard counsel for the parties.
2. The amendment application is allowed.
3. Let the amendment be incorporated in the writ petition within three days.

Order on the Writ Petition

1. List as fresh on 22.1.2024.
2. It is clarified that the interim order is not being extended.

(Kshitij Shailendra, J.) (Manoj Kumar Gupta, A.C.J.)

Order Date :- 18.1.2024

Jaideep/-

Court No. - 21

Case :- WRIT - C No. - 30596 of 2023

Petitioner :- Karan Singh

Respondent :- State Of U.P. And 3 Others

Counsel for Petitioner :- Ravikant Shukla, Manoj Kumar Srivastava

Counsel for Respondent :- CSC, Manu Ghildyal

Hon'ble Manoj Kumar Gupta, Acting Chief Justice

Hon'ble Kshitij Shailendra, J.

1. The petitioner has challenged the recovery citation dated 12.10.2022, issued by respondent no. 4, for recovery of electricity dues.
2. The case of the petitioner is that the electricity connection was in the name of his father. However, recovery has been wrongly issued against him. He also submits that the electric supply was disconnected in the year 2019 and therefore, electricity consumption charges for subsequent period, is wholly illegal.
3. It is not disputed by the petitioner that after death of his father, he was consuming electricity from the same electricity connection and is therefore liable to pay electricity charges. However, dispute for the period after electricity supply was allegedly disconnected, requires adjudication.
4. As suggested by learned counsel for the petitioner, we refer the dispute to the Executive Engineer in terms of Clause 6.5 of the U.P. Electricity Supply Code, 2005 for being decided by him, provided the petitioner deposits 50% of the amount sought to be recovered from him by the impugned recovery citation.
5. Accordingly, the petition is disposed of as follows: -
 - (a) The petitioner will deposit 50% of the total outstanding amount before respondent no. 3 within one month from today and will also file his objections along with true attested copy of the instant order within the same period.
 - (b) Respondent no. 3 will decide the same in accordance with law.

(c) The recovery of balance amount will abide by the decision that would be taken by respondent no. 3 on the representation of the petitioner.

6. In case of non-compliance of any of the conditions stipulated above, the instant order will stand discharged automatically and it shall be open to the respondents to proceed further in the matter in accordance with law.

(Kshitij Shailendra, J.) (Manoj Kumar Gupta, A.C.J.)

Order Date :- 25.1.2024

Jaideep/-